Topic 24 — Important Supreme Court Judgments

Covers syllabus (click to expand)

A.K. Gopalan | Shankari Prasad | Sajjan Singh | Golaknath (गोलकनाथ 1967) | Kesavananda (केशवानंद भारती 1973) Bharati | Indira Nehru (नेहरू) Gandhi (गांधी) vs Raj Narain | Maneka Gandhi | Minerva Mills | ADM Jabalpur | Berubari | I.R. Coelho | S.R. Bommai | Kihoto Hollohan | Indra (इन्द्र) Sawhney | First / Second / Third Judges Cases | Vishaka | Puttaswamy | Shreya Singhal | NJAC | Lily Thomas | Nabam Rebia | Rameshwar Prasad | Navtej (नवतेज जौहर) Johar | Joseph Shine | M.C. Mehta

Sources baked in: Arts. 14–16 / 19 / 21 / 32 / 124 / 163 / 174 / 324 / 356, 10th Schedule, 52nd / 77th / 91st / 99th, RPA s.8, IPC 377 / 497, IT Act 66A, UPPCS 2018–2025 **Weight:** ★★★ — *Navtej* = **s.377 IPC** not Art. 377 (2018); NJAC **99th struck 2015**; Collegium **1993 + 1998**; *Bommai* floor test; Mandal **50% + creamy layer Last verified:** August 2026 **Current Affairs:** Collegium is still judge-made (NJAC text is dead); POSH Act **2013** replaced *Vishaka* guidelines as statute; s.377 IPC later dropped from the 2023 Bharatiya Nyaya Sanhita — the **2018 holding** is what the paper still names

Current Affairs (what the year actually tests)

Newest first. One event, one fact.

Year	What happened	What you mark
2018	*Navtej* on homosexuality	**s.377 IPC**, not Art. 377 (UPPCS Q79)
2018	*Joseph Shine*	s.497 adultery **struck** as a crime
2017	*Puttaswamy* 9-judge	Privacy = FR; *Jabalpur* majority **wrong**
2016	*Nabam Rebia*	Governor cannot rig (ऋग्वेद) the Assembly calendar
2015	NJAC / *Shreya Singhal*	**99th struck 4:1 · s.66A void**
2013	*Lily Thomas* · POSH Act	Instant DQ on conviction · *Vishaka* guidelines get a statute
2006	*Rameshwar Prasad*	Bihar dissolution (विघटन) on horse-trading fear **struck**
2024	Chronology of the four (चातुर्याम) amendment cases	**1951 → 1965 → 1967 → 1973**
2022 / 2020	Who propounded Basic Structure?	***Kesavananda* 1973**, not Golaknath
2021	Golaknath / 24th / Kesavananda / 42nd (42वां)	**1967 → 1971 → 1973 → 1976**
2017	*Puttaswamy* on *Jabalpur*	Majority was **wrongly decided**

Year	What happened	What you mark
2007	*Coelho* 9-judge	9th Schedule (9वीं अनुसूची) post-**24 Apr 1973** still faces BS
1980	*Minerva*	368(4)(5) **dead**
24 Apr 1973	*Kesavananda*	The date *and* the doctrine

UKPCS Prelims 2025

Q. UKPCS Prelims 2025, Q132

Under Article 32 (अनुच्छेद 32), in which case was 'wilful non-compliance' with a court order declared as contempt of the court?

A. Nilabati vs. State of Orissa B. M. L. Sachdev vs. Union of India C. Gracy vs. State of Kerala D. Gopi Aqua vs. Union of India

Show answer

Logic: Nilabati Behera is the custodial-compensation distractor. **Ans: B (Series B provisional key).** M. L. Sachdev vs Union of India is keyed for wilful non-compliance as contempt. Nilabati Behera is the compensation / custodial death trap.

Frame

Two clusters: **can Parliament amend FR / is Art. 21 any procedure or a fair one**, then **who appoints judges, when 356 can be used, what the 10th Schedule really does, which later rights cases held what**. *Golaknath* is still not Basic Structure.

Chronology master

Headed blocks below carry the holdings. This is only the **order**:

- **1950** *Gopalan* → **1951** *Shankari* / 1st Amd → **1960** *Berubari* / 9th Amd → **1965** *Sajjan* → **1967** *Golaknath* → **1971** 24th Amd → **24 Apr 1973** *Kesavananda* (13-j **7:6**)
- **1975** *Indira Gandhi* / 39th → **1976** *Jabalpur* / 42nd → **1978** *Maneka* / 44th → **1980** *Minerva* → **1981** *Waman Rao* + First Judges → **1986** *Mehta* Oleum
- **1992** *Sawhney* + *Kihoto* → **1993** Second Judges (CJI+**2**) → **1994** *Bommai* → **1997** *Vishaka* → **1998** Third Judges (CJI+**4** / HC CJI+**2**)
- **2006** *Rameshwar Prasad* → **2007** *Coelho* → **2013** *Lily Thomas* → **2015** *Shreya* + NJAC **4:1** → **2016** *Nabam Rebia* → **2017** *Puttaswamy* → **2018** *Navtej* + *Joseph Shine*

> **Logic:** Four-case order = **1951–65–67–73**. 24th Amd is **1971** — **before** Kesavananda. Basic Structure = *Kesavananda* 1973, **not** Golaknath.

PYQ — UPPCS Prelims 2024, Q126

Identify the correct chronological sequence:

1. Shankari Prasad vs Union of India
2. Sajjan Singh vs State of Rajasthan
3. Golaknath vs State of Punjab
4. Kesavananda Bharati vs State of Kerala

A. 1, 4, 3, 2 B. 3, 2, 1, 4 C. 1, 2, 3, 4 D. 3, 4, 2, 1

Show answer

Ans: C — 1951 → 1965 → 1967 → 1973.

PYQ — UPPCS Prelims 2021, Q42

Arrange: I Golaknath II Kesavananda III 24th Constitution Amendment IV 42nd Constitution Amendment

A. I, III, II, IV B. I, II, III, IV C. III, I, II, IV D. III, I, IV, II

Show answer

Ans: A — 1967 → 1971 → 1973 → 1976. 24th is **before** Kesavananda.

A.K. Gopalan vs State of Madras (1950)

Art. 21 = any procedure in a competent law; FRs in silos. Not US due process. Detainee tested under **22**, not also under 19.

A.K. Gopalan, a Communist leader, was detained under the **Preventive Detention Act, 1950**. He argued: the detention violated Art. **19(1)(d)** (move freely) and Art. **21**, and that "procedure established by law" must be a *fair* procedure.

- **Bench:** 6-judge. **H.J. Kania** CJ. **Fazl Ali** dissent
- **Fazl Ali:** 19 and 21 should be read **together**; procedure must be reasonable
- **Severability:** s.14 of the PD Act (barred the court from seeing the grounds of detention) was **struck**; the rest of the Act **stood**
- **Later:** the silo / "any procedure" reading (रीडिंग) is replaced by ***Maneka* 1978**. The need for a **valid law** remains

> **Logic:** *Gopalan* **refused** due process. It is **not** still the Art. 21 test — ***Maneka*** is.

Shankari Prasad vs Union of India (1951)

What the 1st Amendment (assent 18 Jun 1951) actually did — this is the statute that was challenged: - **Art. 15(4)** — special provision for socially and educationally backward classes + SC/ST. Direct reply to *State of Madras vs Champakam Dorairajan* (1951), which had struck a caste-based admissions GO as violating 15/29 - **Art. 19(2)** — added three more grounds to restrict speech: **public order**, **friendly relations with foreign States**, **incitement to an offence** - **Art. 19(6)** — a State monopoly / nationalisation is a **reasonable restriction** on 19(1)(g) - **Arts. 31A, 31B + 9th Schedule** — agrarian-reform / "estate" laws **listed in the 9th Schedule** cannot be declared void for violating Fundamental Rights. The Schedule started with **13 ActsPetitioner's argument:** Art. **13(2)** says the State shall not make any "**law**" that takes away a Fundamental Right. A constitutional amendment is a law. The 1st Amd abridges Part III. Therefore it is void.

"Law" in Art. 13 = ordinary Act, not a 368 amendment. Article 368 (अनुच्छेद 368) **includes** the power to amend Part III. 1st Amendment **valid**.

- **Bench:** 5-judge. **Patanjali (योग) Sastri**
- In 1951 the 9th Schedule looks like a complete FR-proof vault

> **Logic:** *Shankari Prasad* did **not** invent Basic Structure. Opposite — it said 368 can amend FR with no identity-ceiling.

Sajjan Singh vs State of Rajasthan (1965)

***Shankari* still good law. 368 can amend FR. 17th Amendment valid.** Mudholkar **hinted** "basic features"; he did **not** invent the doctrine.

What the 17th Amendment (1964) actually did: put **more land-reform Acts** into the 9th Schedule, and **widened "estate"** in Art. 31A. Same Art. **13(2)** argument as *Shankari*.

- **Bench:** 5-judge. **Gajendragadkar** CJ
- **Mudholkar J.:** separate opinion — does the Constitution have "**basic features**" that even 368 cannot destroy? (He points to the idea; he does **not** strike the 17th)
- **Hidayatullah J.:** also doubts *Shankari* on 13 vs 368

> **Logic:** Basic Structure ≠ *Sajjan Singh* 1965. Mudholkar hinted; the doctrine is **1973**.

I.C. Golaknath vs State of Punjab (1967)

FR cannot be amended — a 368 amendment **is "law"** under Art. **13(2)**. **Not** Basic Structure. 11-judge, **6:5**. Prospective overruling.

Henry and William **Golaknath** — land in Punjab hit by ceiling laws that the **17th Amendment** had put in the 9th Schedule.

- **Bench:11-judge. K. Subba Rao** CJ. Majority **6:5**
- **Prospective overruling:** first major Indian use. The new rule applies only to **future** amendments. The **1st and 17th Amendments already made remain valid** — so the Punjab laws in the 9th Schedule **stood**
- The phrase and the identity-ceiling arrive in **1973**

> **Logic:** *Golaknath* ≠ Basic Structure. It did **not** void the 1st Amd (prospective).

Parliament's reply — 24th Amendment, 1971 (this is the statute *Kesavananda* then tests):

- Inserts Art. **13(4)** and Art. **368(3)**: nothing in Art. 13 applies to a 368 amendment
- Restates Art. **368(1)** as the **constituent** power to amend **any** provision
- President **shall** give assent to a 368 Bill (cannot return / pocket it)

PYQ — UPPCS Prelims 2022, Q37

The concept 'Basic Structure of the Constitution' was propounded in—

A. *Kesavananda Bharati* vs State of Kerala — 1973 B. *Golaknath* vs State of Punjab — 1967 C. *Chitralekha* vs State of Mysore (मैसूर) — 1964 D. *Yusuf* vs State of Bombay — 1954

Show answer

Ans: A. *Golaknath* = FR-cannot-amend, not BS. **C and D are distractors** — do not raata them as BS cases.

PYQ — UPPCS Prelims 2020, Q120

The Supreme Court enunciated "Basic Structure of the Constitution" in—

A. Golaknath 1967 B. Keshavanand Bharati 1973 C. Shankari Prasad 1951 D. Sajjan Singh 1965

Show answer

Ans: B.

Trap: *Golaknath* = Basic Structure. **No.** Trap: *Golaknath* voided the 1st Amd. **Prospective — it did not.**

Kesavananda Bharati vs State of Kerala (24 April 1973)

Basic Structure — Parliament's amending power under 368 cannot destroy the Constitution's basic structure. FR **can** be amended; identity **cannot**. 13-judge bench; **7–6**.

His Holiness **Kesavananda Bharati**, head of **Edneer Mutt**, Kasaragod (Kerala), challenged Kerala land-reform laws that had taken mutt property. The **29th Amendment (1972)** had put two Kerala Land Reforms Acts into the **9th Schedule**. He also attacked the **24th** and **25th** Amendments.

Largest Bench: **13 judges**. **S.M. Sikri** CJ. Majority **7:6**. Related: *Golaknath* → 24th → *Kesavananda* → *Minerva*.

What the 25th Amendment (1971) had done — this is the 31C fight:

- Replaced "compensation" in Art. 31(2) with "**amount**"
- Inserted Art. **31C** in two limbs: 1. A law giving effect to DPSP **39(b)** (material resources distributed to subserve the common good) or **39(c)** (no concentration of wealth) cannot be void for violating **14 or 19** 2. **No court shall question** whether the law really gives effect to 39(b) or (c)
- **Overrules** *Golaknath* on "FR cannot be amended"
- **24th Amd upheld** — the power to amend FR exists — and is then **capped** by basic structure
- **25th Amd / 31C:** limb 1 (39(b)(c) shield from 14/19) **valid**. Limb 2 (no judicial review) **struck**
- **29th Amd** itself **upheld**; a law sitting in the 9th Schedule can still be tested against **basic structure**
- **Preamble is part** of the Constitution (*Berubari* 1960 had said it is not). It can be amended, but not so as to destroy basic structure
- **Sikri's list** (not a closed Article): supremacy of the Constitution · republican and democratic form of government · **secular** character · separation of powers · **federal** character
- **24 April 1973** is later used as the 9th-Schedule cut-off (*Waman Rao*, *Coelho*)
- **26 April 1973:A.N. Ray** is appointed CJI, superseding Shelat, Grover and Hegde (judges on the *Kesavananda* majority side)

There is **no official closed list**. Later cases add features; they do not repeal Sikri.

> **Logic:** 24th Amendment is **1971 — before** Kesavananda. *Kesavananda* did **not** freeze Part III again — it allowed FR amendment and froze identity.

Indira Nehru Gandhi vs Raj Narain (1975)

Rae Bareli, 1971 LS election. Raj Narain (SSP) petitioned the Allahabad (इलाहाबाद) High Court: Indira Gandhi had used a gazetted officer (**Yashpal Kapoor**, her PA, still in government service) in the campaign — a corrupt practice under the **Representation of the People Act, 1951**.

12 June 1975: Justice **Jagmohan Lal Sinha** (Allahabad HC) **voided** her election and barred her from contesting for **6 years** (20-day stay to appeal).

25 June 1975: National Emergency (राष्ट्रीय आपात) proclaimed.

39th Amendment (10 Aug 1975) inserted Art. **329A**:

- Election of **President, Vice-President, Prime Minister and Speaker** shall not be questioned in any court
- Any **pending** election petition about the PM stands **void**
- Such a dispute, if at all, only before a body created by Parliament

39th Amd's Art. 329A(4)(5) struck — PM-election cannot be put beyond judicial review. Applied Basic Structure; did **not** invent it.

- **Bench:** 5-judge. **A.N. Ray** CJ

- **Features named here:democracy · free and fair elections · rule of law · judicial review**
- Parliament had meanwhile amended the RPA (removing some corrupt-practice definitions with retrospective effect). The Supreme Court **set aside** the Allahabad judgment and **upheld** her election on that amended law. Remember: still: **329A(4)(5) died**

> **Logic:** This case *applied* the 1973 doctrine to the 39th Amendment. It did **not** invent Basic Structure.

ADM Jabalpur vs Shivkant Shukla (1976)

Habeas Corpus case — majority: if Art. 21 is suspended, no legally enforceable right to found habeas. **H.R. Khanna dissented.** Later: 44th + *Puttaswamy* say the majority was **wrong**.

After the 25 June 1975 Emergency, the President under Art. **359** suspended the right to move any court for enforcement of Arts. **14, 21 and 22**. Thousands were detained under **MISA**.

- **Bench:** 5-judge. Majority **4:1**. Majority: **Ray, Beg, Chandrachud, Bhagwati**
- **Khanna:** Art. 21 is not the *source* of the right to life; even without 21 the State cannot kill or detain except under the **authority of law**
- **44th Amendment, 1978:** Art. 359 rewritten — the right to move a court for Arts. **20 and 21 cannot be suspended**
- ***Puttaswamy* (2017):** 9-judge — the *Jabalpur* majority was **wrongly decided**; Khanna was right

> **Logic:** Khanna **dissented**; he did not write the majority. *Jabalpur* is **not** still the habeas rule.

Maneka Gandhi vs Union of India (1978)

Art. 21 procedure must be fair, just and reasonable. Golden triangle **14-19-21**. Text of 21 still "procedure established by law" — fairness poured *into* those words.

Maneka Gandhi's **passport was impounded** under **s.10(3)(c) of the Passport Act, 1967** "in the public interest." She was given **no reasons** and **no hearing**.

- **Bench:7-judge**. **M.H. Beg** CJ. The opinion you mark is **P.N. Bhagwati**
- Natural justice (*audi alteram partem*) sits inside 21
- vs *Gopalan*: the silo reading **goes**. You still need a **valid law**; that law's procedure must now also be **fair**

> **Logic:** *Maneka* did **not** change Art. 21's wording to "due process." It **added** fairness; it did **not** drop the need for a law.

Minerva Mills vs Union of India (1980)

Minerva Mills Ltd, a textile mill in Bangalore, was nationalised under the **Sick Textile Undertakings (Nationalisation) Act, 1974**. The petition was used to test two 42nd-Amendment weapons.

What the 42nd Amendment (1976) had done — the clauses under challenge:

- Art. **368(4):** no constitutional amendment shall be called in question in any court
- Art. **368(5):** there is **no limitation whatever** on the constituent power under 368
- Art. **31C** stretched: the 14/19 shield would cover a law giving effect to **any** DPSP, not only 39(b) and 39(c)

42nd's 368(4)(5) struck — unlimited amending power dies. 31C cut back to **39(b)(c)** only. Limited amending power + FR–DPSP harmony = Basic Structure.

- **Bench:Y.V. Chandrachud** CJ. Majority **4:1** (Bhagwati partly apart)
- Also struck: the 42nd's stretch of **31C to all DPSPs**
- What 31C still covers: only DPSP **39(b)** and **39(c)** — the limb *Kesavananda* had already saved

> **Logic:** *Minerva* did **not** invent Basic Structure. It used 1973 to kill 368(4)(5). 31C covers **only 39(b)(c)**, not every DPSP.

In re Berubari Union (1960)

Berubari Union No. 12, Jalpaiguri district, **West Bengal**. Under the **Nehru–Noon Agreement, 10 Sept 1958**, India proposed to transfer **half of Berubari** to Pakistan and to exchange certain Cooch Behar enclaves.

The President asked the Supreme Court under Art. **143**: can this be done by an **ordinary law** (or by Art. **3**, which lets Parliament alter State boundaries)? Or is a **constitutional amendment** needed? Can the **Preamble** (प्रस्तावना) be a source of power to cede land?

Cession of Indian territory needs a constitutional amendment, not an ordinary Act or Art. 3. 1960 view: Preamble is **not** part of the Constitution (later reversed by *Kesavananda*).

- Art. **3** is for reorganisation **inside** India, not for giving land away. Cession needs amendment of Art. **1** and the **First Schedule**
- **What followed:9th Constitutional Amendment Act, 1960** implemented the transfer
- **Do not mix:** 9th **Amendment** (1960, this border) ≠ 9th **Schedule** (1st Amd 1951, FR-shield). Art. **350B** (अनु. 350B) is the **7th** Amendment, not the 9th
- Preamble later: *Kesavananda* (1973) and *LIC* (1995): Preamble **is** part. The **cession** rule (needs an Amd) **still stands**. The 2015 India–Bangladesh land swap used the **100th Amendment** for the same reason

> **Logic:** 9th Amendment (9वां संशोधन) ≠ 9th Schedule. *Berubari* is **not** the last word on the Preamble — *Kesavananda* reversed that limb only.

I.R. Coelho vs State of Tamil Nadu (नाडु) (2007)

The **Gudalur Janmam Estates (Abolition and Conversion into Ryotwari (रैयतवाड़ी)) Act, 1969** (Tamil Nadu) was partly struck down for violating Fundamental Rights. Parliament then parked it in the **9th Schedule** by the **34th Amendment (1974)** — i.e. **after** 24 April 1973. The **66th Amendment (1990)** put further Tamil Nadu Acts into the same Schedule. The State's case: once a law is in the 9th Schedule, courts cannot touch it.

9th Schedule is not a total immunity. Post-**24 Apr 1973** inserts that damage basic structure (esp. 14/19/21) can still be struck. 9-judge.

- **Bench:9-judge**. **Y.K. Sabharwal** CJ
- ***Waman Rao* (1981) first:** laws put in the 9th Schedule **on or before 24 April 1973** remain saved from a pure FR attack. Laws inserted **after** that date are open to **basic-structure** review
- Does **not** wipe the original 1951 zamindari batch, and does **not** void every 9th-Schedule law automatically

> **Logic:** *Coelho* did **not** invent the cut-off — *Waman Rao* drew the date; *Coelho* locked it as 9-judge law. Not every 9th Schedule law is void.

Institutions · 356 · reservation · later rights

S.R. Bommai vs Union of India (1994)

Art. 356 is justiciable. Majority = floor test, not Raj Bhavan. Secularism is Basic Structure, so a communal ministry can justify 356. 9-judge.

S.R. Bommai, Janata Dal CM of **Karnataka**, was dismissed in **1989**. **No floor test.** Similar 356 proclamations in **Meghalaya (मेघालय), Nagaland, Madhya Pradesh, Rajasthan, Himachal (हिमाचल) Pradesh** (the last three after Babri **6 Dec 1992**) were heard together.

- Do **not** dissolve the Assembly until **Parliament has approved** the 356 proclamation. If the proclamation is struck, the Assembly can be **revived**
- What it does **not** say: 356 is repealed. A ministry that **has** lost the floor can still be dismissed

> **Logic:** *Bommai* did **not** invent Basic Structure. It applied secularism/federalism to **356**. Inventor = 1973.

Rameshwar Prasad vs Union of India (2006)

Bihar dissolution on a mere fear of horse-trading, with no floor test, struck. *Bommai* applied.

Bihar, 2005. Hung Assembly after the February election. Before the House even sat, Governor **Buta Singh** reported horse-trading. The President **dissolved** the Assembly in May 2005.

- Majority is tested in the House, not guessed in Raj Bhavan
- The Court **did not restore** that Assembly — a fresh election (Oct 2005) had already happened. The fact is the **principle**, not a restored House

> **Logic:** *Rameshwar Prasad* is **not** a 356-is-never-justiciable case. Opposite.

Nabam Rebia vs Deputy Speaker (2016)

Governor cannot advance/summon (आहूत करना) a sitting to help a faction defeat the Speaker. Art. 174 is not a free-floating discretion to thwart the Assembly.

Arunachal Pradesh, 2015–16. Governor **J.P. Rajkhowa** preponed the Assembly sitting and listed **removal of the Speaker**, so rebel Congress (कांग्रेस) MLAs could topple CM **Nabam Tuki**'s camp.

- Art. **163(2):** his decision that a matter "is discretionary" is not a **blank cheque** — it is reviewable if used to defeat the Constitution
- A notice to remove the Speaker is not decided by advancing the calendar on Raj Bhavan's orders

> **Logic:** 163 carves discretion — *Nabam Rebia* says it is **not** a general reservoir.

Kihoto Hollohan vs Zachillhu (1992)

Challenge to the **10th Schedule** (inserted by the **52nd Amendment, 1985**). Two clauses were the fight:

- **Para 6:** the Speaker / Chairman's decision on defection is **final**
- **Para 7:no court** shall have jurisdiction on 10th-Schedule matters

10th Schedule valid; Speaker's defection order is judicially reviewable. Para 7 total ouster of courts **struck**.

- Defection as a ground does **not** destroy parliamentary democracy
- Para 7 invalid because it touched HC/SC jurisdiction and had not gone through the 368 State-ratification route
- Speaker acts as a **tribunal**. Review: mala fide, perversity, violation of constitutional mandate / natural justice — not a full merits appeal
- Later: *Keisham Meghachandra* (2020) — the Speaker must decide in a **reasonable time**; he cannot sit on the petition

91st Amendment, 2003 (the statute that tightens the Schedule — not a *Kihoto* holding): the **1/3 split** is deleted; only a **merger** with **≥2/3** of the legislature party survives.

> **Logic:** *Kihoto* killed "Speaker's order is final." It did **not** strike the whole 10th Schedule — only the ouster clause.

Lily Thomas vs Union of India (2013)

RPA s.8(4) three-month cushion for sitting MPs/MLAs struck. Conviction ≥2 years (s.8(3)) → **instant disqualification**.

RPA, 1951 s.8(3): a person convicted and sentenced to ≥ **2 years** is disqualified. **s.8(4)** gave a **sitting** (बैठक) MP/MLA **three months** to appeal — candidates who were not yet members had no such cushion.

- s.8(4) unconstitutional (Art. **14**). Parliament cannot give sitting members a privilege that candidates do not have
- **Not** an election-petition case, and **not** a 10th-Schedule defection case

> **Logic:** *Lily Thomas* is about **criminal conviction and RPA s.8**, not anti-defection.

Indra Sawhney vs Union of India (1992)

Mandal: 27% OBC valid; 50% ceiling; creamy layer out; no reservation in promotion. 9-judge.

Mandal Commission (B.P. Mandal, 1979; report 1980) recommended **27%** reservation for OBCs in Union services. **V.P. Singh** implemented it in **1990**.

- Creamy layer must be **excluded** from OBC reservation (income/status test). **Not** applied by this case to SC/ST
- Art. 16(4) does **not** cover promotion. Parliament's reply: **77th Amd 1995** inserts **16(4A)** for SC/ST promotion; **85th Amd 2001** adds consequential seniority
- Carry-forward: backlog + current reserved vacancies should not push that year over 50% — later **81st Amd (16(4B))** took backlog **outside** the 50% for that year
- Caste can be a **starting point** for identifying backwardness; it is not the only criterion
- **Not decided here:** EWS 10% (*Janhit Abhiyan* 2022 upheld the **103rd**)

> **Logic:** *Sawhney* did **not** invent reservation (16(4) is 1950). Creamy layer here = **OBC only**, not SC/ST. Promotion bar → **77th** put SC/ST promotion back.

First / Second / Third Judges Cases

Art. 124(2) text: the President appoints every SC judge after **consultation** with such judges as he deems necessary. The CJI **must** be consulted for every judge other than the CJI. The word "consultation" is **not**

defined in the Article — the three cases define it. The Collegium is **judge-made**. It is **not** written in Arts. 124–217.

First Judges Case (प्रथम) (*S.P. Gupta (गुप्त)*, 1981)

Executive primacy. Consultation ≠ concurrence. Also the Judges' Transfer case. - Transfer of HC judges without the judge's consent was upheld (later narrowed)

Second Judges Case (द्वितीय न्यायाधीश) (*SCAORA*, 1993)

Collegium born: CJI + 2. Consultation = **concurrence**. Primacy is of the **CJI as an institution**, not of one man. - If the Collegium **reiterates** a name after the government returns it, the government is **bound**

Third Judges Case (Art. 143, 1998)

SC Collegium = CJI + 4. HC = CJI + 2. President **K.R. Narayanan** asked under Art. **143**. - Also consult that HC's CJ + two senior colleagues, and the senior-most SC judge from the recommendee's parent HC - If **two or more** Collegium judges dissent, the name is **not** sent

> **Logic:** Collegium ≠ First Judges. **Second** created it; **Third** enlarged it. Third Judges was an **Art. 143 reference**, not ordinary litigation.

NJAC Judgment (Fourth Judges Case, 16 Oct 2015)

99th Constitutional Amendment, 2014 inserted Arts. **124A, 124B, 124C** and created the **National Judicial Appointments Commission**. The **NJAC Act, 2014** laid down the procedure. Challenged in *SCAORA vs UOI* (the same title as Second Judges).

NJAC as the 99th wrote it (six seats): - Chair: **CJI** · two **senior-most SC judges** · Union **Law Minister** · two **eminent persons** chosen by **PM + CJI + Leader of Opposition in LS** (one of the two from SC/ST/OBC/Minority/**women**; tenure **3 years**, no re-nomination) - Veto: if **any two** members disagree, the appointment is **not** made

99th Amd / NJAC struck 4:1 (16 Oct 2015). Judicial independence = Basic Structure. Collegium **revives**. Arts. 124A–C are **dead text**.

- **J.S. Khehar** wrote the majority. **J. Chelameswar** dissented
- Giving the executive (and two eminent persons with a veto) a blocking vote damaged judicial independence
- **Not** an Art. 143 reference. It is **litigation**, unlike Third Judges

> **Logic:** NJAC was **in** the text and still fell. Collegium is **judge-made**. NJAC = **six** members, **any-two** veto — not CJI + Law Minister only.

Vishaka vs State of Rajasthan (1997)

Workplace sexual-harassment guidelines under 14/15/19/21 till POSH Act 2013. Court-made stop-gap from **CEDAW**.

Bhanwari Devi, a Rajasthan *saathin*, was gang-raped in **1992** after she tried to stop a child marriage. There was **no** Indian statute on workplace sexual harassment.

- Duty to prevent, a complaints committee headed by a **woman**, third-party / NGO member, awareness, no victimisation
- Statute that followed: **POSH Act, 2013**. Guidelines were a **stop-gap**, not a permanent substitute for a law

> **Logic:** *Vishaka* is **1997 guidelines**. POSH Act is **2013**.

K.S. Puttaswamy vs Union of India (2017)

Privacy = Fundamental Right under Art. 21. 9-judge, unanimous, **24 Aug 2017**. *Jabalpur* majority **wrong**.

Challenge to the **Aadhaar** project's collection of biometric data, heard first as a privacy question. Aadhaar's validity as a scheme is the **2018** 5-judge follow-on — different card.

- Not an absolute right — the State may restrict it by a **law**, for a **legitimate aim**, with **proportionality**. Traces of **14 / 19** too
- Overruled / confined: *M.P. Sharma* (1954) and *Kharak Singh* (1962) to the extent they said there is **no** constitutional privacy. Khanna's *Jabalpur* dissent is the law
- **2018 Aadhaar follow-on:** 5-judge — Aadhaar as a welfare-authentication scheme largely **upheld**; **s.57** (private-company use) **struck**. Do not treat 2017 and 2018 as one holding

> **Logic:** *Puttaswamy* **2017** = privacy is an FR. **2018** saved most of Aadhaar. Privacy is **not** only a DPSP.

Shreya Singhal vs Union of India (2015)

IT Act s.66A struck — vague, overbroad, chills Art. **19(1)(a)**. s.69A blocking **upheld**.

Two women in Palghar were arrested over a Facebook post after Bal Thackeray's death, using **s.66A**.

- **s.79** (intermediary safe-harbour) also **upheld**, with the blocking process read strictly
- Police still sometimes invoke 66A; the **holding** is that the section is **void**

> **Logic:** *Shreya Singhal* did **not** strike the entire IT Act. **Only 66A** (plus a slice of 79's overbreadth as then written).

Navtej Singh Johar vs Union of India (2018)

s.377 IPC unconstitutional for consensual adult sex — not "Article 377". 5-judge, **Dipak Misra** CJI.

s.377 IPC criminalised "carnal intercourse against the order of nature." *Naz Foundation* (Delhi HC, 2009) had read it down; *Suresh Kumar Koushal* (SC, 2013) had **reversed** *Naz*.

- Violates Arts. **14, 15, 19, 21**. Overrules *Koushal* (2013)
- What remains (as of 2018): non-consensual acts, sex with a minor, bestiality — still capable of being punished under 377 as it then stood
- **2018 UPPCS:** the homosexuality judgment is **s.377 of the IPC**, **not Article 377** (Art. 377 = transitory provision on the **CAG**)

> **Logic:** *Navtej* did **not** delete Article 377 of the Constitution. There is no such privacy article. **IPC section.**

Joseph Shine vs Union of India (2018)

s.497 IPC adultery struck as a crime. 5-judge. Adultery can still be a **civil** matrimonial ground.

s.497 IPC — only a **man** who has sex with a married woman **without her husband's consent** is punished. The woman is **not** even an abettor.

- Treats the woman as the husband's property; violates **14, 15, 21**
- Overrules *Yusuf Abdul Aziz* (1954), which had saved 497 as a "special provision" for women under 15(3)

> **Logic:** *Joseph Shine* did **not** make adultery a Fundamental Right. It struck a criminal section. **377 ≠ 497.**

M.C. Mehta vs Union of India (Oleum, 1986) — and the environment line

Absolute liability for hazardous industry; clean environment read into Art. 21. Stricter than English *Rylands v Fletcher* strict liability.

December 1985: oleum gas leaked from **Shriram Foods and Fertiliser** (Delhi). M.C. Mehta petitioned under Art. **32**.

- **No exceptions** (no "Act of God", no stranger's act, no plaintiff's consent)
- Later *Mehta* orders: **Ganga** (गंगा) pollution, **Taj Trapezium**, Delhi **CNG** buses
- Polluter pays / precautionary developed in this line (also *Vellore Citizens*, 1996). Syllabus bullet: **21 + absolute liability**, not every later direction

> **Logic:** *Mehta* ≠ Rylands transplanted. Absolute liability **dropped** the English exceptions. Environment is also an Art. **21** right, not only a DPSP (48A / 51A(g)).

Basic Structure — what you actually mark

No Article defines it. No Schedule lists it. Court **names** features as cases arrive.

Inventor vs applier — read the stem

- ***Kesavananda Bharati* (1973) invented** the Basic Structure ceiling: Parliament may amend Fundamental Rights, but it cannot destroy the Constitution's identity.
- Later cases **apply** that ceiling; they do **not** invent it. Marking *Golaknath*, *Minerva*, *Bommai*, or *Coelho* as "propounded Basic Structure" is the classic trap.
- ***Golaknath* (1967)** froze Part III amendments — different holding, earlier year.
- ***Indira Nehru Gandhi* (1975)** applied Basic Structure to free and fair elections / rule of law against the 39th Amendment path.
- ***Minerva Mills* (1980)** struck the 42nd Amendment's attempt at unlimited Art. 368 and restated FR–DPSP harmony — an **application**, not invention.
- ***S.R. Bommai* (1994)** applied secularism / federalism to Art. **356** review.
- ***I.R. Coelho* (2007)** applied Basic Structure review to post-*Kesavananda* Ninth Schedule inserts.
- **Sikri in *Kesavananda*:** supremacy of the Constitution · republican & democratic form · secular character · separation of powers · federal character
- ***Indira Gandhi* 1975:** democracy · free and fair elections · rule of law · judicial review
- ***Minerva Mills* 1980:** limited amending power · harmony between FR and DPSP
- ***Coelho* 2007:** Arts. **14, 19, 21** as a test for 9th-Schedule laws
- ***Bommai* 1994:** secularism (and federalism) applied to **356**
- **NJAC 2015:** judicial independence — a constitutional amendment can **die**

> **Logic:** If the option says "propounded in *Golaknath / Shankari / Sajjan*" — **wrong year and wrong holding.** Do not confuse *Kesavananda* (invented the ceiling) with *Minerva* (struck 42nd's unlimited 368).

Mains link (one frame)

The amendment chain built the **ceiling** (Basic Structure + fair Art. 21). The later cases show what the Court then **did with it**. Judicial independence killed the **99th** (*NJAC*). Secularism and federalism police **356** (*Bommai*), not Raj Bhavan arithmetic (*Rameshwar Prasad / Nabam Rebia*). The 10th Schedule survives because *Kihoto* saved it and killed only the ouster clause. *Sawhney* capped reservation and invented the creamy layer; *Puttaswamy* made privacy an FR and buried *Jabalpur*; *Navtej* is **s.377 IPC**,

never Article 377. Close with: **Collegium is judge-made; NJAC was in the text and still fell**; **Lily Thomas is RPA s.8, not defection**; **Mehta is absolute liability, not Rylands**.